

AUTO RITE IT
PERSONAL DATA

The Minister of the Interior and Kingdom Relations

P.O. Box 20011

2500 EA, The Hague

Date

February 6, 2023

Subject

Our reference

22022-04979

Contact person

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Dutch Data Protection Authority

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Your letter dated

September 26, 2022

Your reference

2022-0000307335

Advice on the draft for the National Act on Procedures for Royal Distinctions.

Dear Ms. Bruins Slot,

In a letter dated September 21, 2022, the Dutch Data Protection Authority (AP) was consulted based on the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR)

regarding the draft for the National Act on Procedures for Royal Distinctions (hereinafter: the draft).

The AP has comments on the draft and advises that these should be taken into account.

Main points

1.

Clarify that confidentiality is guaranteed across the board or take additional measures;

2.

The draft contains a note regarding its applicability to the Military William Order, on which the AP cannot advise;

3.

In the explanation, address the level of data protection in third countries, insofar as there is a transfer of data to those countries;

4.

If this has not been done, submit the draft for advice to the Supervisory Committee on Data Protection BES.

Scope of the draft

The draft aims to ensure that the procedures for awarding a royal distinction comply with the GDPR.

To this end, the draft contains a legal basis for the processing of regular and criminal data by officials involved in the decision-making in the European and Caribbean parts of the Netherlands and in the Caribbean countries of the Kingdom. The processing of personal data of the person nominated for a distinction (decorandus) occurs, with exceptions, without their knowledge. The draft provides for certain safeguards, such as ceasing processing if there is a belief that the decorandus does not wish to receive the distinction. The draft further provides for grounds for rules regarding the processing of personal data and the limitation of the right to access under Article 15 of the GDPR.

Advice

Confidentiality

In the explanation of the draft, it is rightly emphasized that the processing of personal data is confidential. The processing occurs without the data subject being aware of the processing or being able to intervene. There is little doubt that the confidentiality of the processing of personal data is

generally important. The data may also be sensitive, such as data regarding political opinions, religious or philosophical beliefs, and in the preparation of the decision-making, criminal data is also processed. It is important to note that this also concerns data of individuals who ultimately are not decorated. The AP endorses the importance of confidentiality in the processing of such data. This confidentiality should be guaranteed across the board by a statutory confidentiality obligation. The explanation notes that the persons working at the chancellery are bound by a confidentiality obligation.

However, in addition to the persons working at the chancellery, there are also other individuals professionally involved in the handling of the application. These include the officials mentioned in the draft, such as the mayor, the authority holder, the King's Commissioner, the National Representative, the Governor, the members of the Chapter, ministers, and persons designated by those bodies. In the opinion of the AP, the explanation should address how confidentiality is guaranteed for these individuals who play a role in the application, including individuals who process personal data outside the European part of the Netherlands.

Furthermore, the AP notes that a statutory confidentiality obligation may be a condition for being able to waive the obligation under the GDPR to actively inform data subjects.

The AP advises that the explanation should address the confidentiality obligation of all persons involved in the handling of the application and, if necessary, take additional measures.

Military William Order

The draft also contains a note regarding its applicability to the Military William Order. The AP cannot therefore advise on that aspect.

1 Article 18 of the draft.

2 Article 10, paragraphs 2 to 4, Article 15, paragraphs 2 to 5, of the draft.

3 Paragraph 3.4.6 of the explanatory memorandum.

4 Paragraph 3.4.3 of the explanatory memorandum.

5 See Article 20 of the draft, but also Articles 2 to 8 and 11 of the draft.

6 Article 14, paragraph 5, sub c, of the GDPR.

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AUTHORITY

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Transfer of data to third countries

The concept concerns the processing of personal data in countries that fall outside the scope of the GDPR (the so-called third countries). For the provision or transfer of personal data for processing in those third countries, the requirement of equivalent protection must be met.

The AP refers to this.

The AP advises that, insofar as there is a transfer of personal data to third countries within the meaning of the GDPR, the explanation should address the equivalent protection of personal data.

Advising Caribbean Netherlands

The AP is only authorized to advise on the concept insofar as it concerns European Netherlands. The AP advises that the proposal for the National Ordinance, if this has not yet been done, should also be submitted for advice to the Commission for the Supervision of Personal Data Protection BES.

Publication of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) concept is made public. The AP would like to be informed of the expected date of publication as soon as this is known.

Yours sincerely,

Authority Personal Data

Aleid Wolfsen

Chairman

Article 46 of the GDPR

